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File No.: EXP202213780

RESOLUTION No.: R/00538/2023

Considering the complaint filed on November 18, 2022, with this Agency by Mr. A.A.A. against KUMON INSTITUTO DE EDUCACION DE ESPAÑA, S.A. for not having properly attended to his right of access.

Procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), have been carried out, and the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) requested from KUMON INSTITUTO DE EDUCACION DE ESPAÑA, S.A. with NIF A80067176 (hereinafter, the respondent) the data they have regarding his minor child, a student of the respondent.

“- The activities that he has been performing at the center from February 15 to the present.

- The activities proposed by the center to be carried out at home from February 15 to the present.

- The information obtained from the follow-up from February 15 to the present.”

The complainant states that, after an exchange of emails between the parties, as well as an in-person meeting, he was not provided with the requested information.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The Data Protection Delegate of the respondent states that the complainant's request was answered on the same day, communicating the minor's attendance at the center for the implementation of reading and mathematics programs.

It is also indicated that, in light of the dissatisfaction with the response received, a meeting was held with the complainant to show him the requested information, as well as the graphs of the evolution history in the reading and mathematics activities of his child.

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However, once the complaint was received, they indicate that they sent in their response to the request for information, the graphs and the evaluation tests carried out by the minor in the mentioned activities.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the complainant's claims were satisfied. Consequently, on February 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing, given that compliance with the duty to respond was not evidenced, and the parties were informed that the maximum period to resolve the present procedure, which is understood to have commenced with said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing process, so that within ten working days it could present the allegations it deemed appropriate. This entity has provided a copy of the email sent to the complainant on March 13, 2023, attaching the requested information.

FOURTH: After examining the allegations presented by the respondent, they were forwarded to the complainant, so that, within fifteen working days, he could submit any allegations he considered appropriate, with no response recorded in this Agency.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in

accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the complainant with the due response,

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in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

Said admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the interested party may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

FIFTH: In the case analyzed here, after examining the documentation in the file, it has been established that the complaining party requested information about their minor child, a student of the entity:

- The activities that he has been carrying out at the center from February 15 to the present.
- The activities proposed by the center to be carried out at home from February 15 to the present.
- The information obtained from the monitoring from February 15 to the present."

During the processing of this procedure, the respondent has provided a copy of the email sent to the claimant supplying the requested information.

The Court of Justice of the European Union in its judgment of December 20, 2017, case C-434/16, Peter Nowak/Commissioner for Data Protection, considers that the written responses submitted by a candidate for a professional examination and any comments from an examiner regarding those responses constitute personal data relating to the examination candidate. More specifically, this subjective information is personal data "in the form of opinions and evaluations," as long as it relates "to the data subject" rather than the examination questions, which are not considered personal data ("Guidelines 01/2022 on the rights of data subjects — Right of access").

However, in this context, it must also be taken into account that the possibility of obtaining a copy of

the personal data being processed cannot negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

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(...) When personal data consists, for example, of information handwritten by the data subject, in some cases the data subject must receive a photocopy of that handwritten information, as the handwriting itself is personal data. This could be especially the case when the handwriting is something that matters for the processing, for example, handwriting analysis. The same generally applies to audio recordings, as the voice of the data subject is personal data. However, in some cases access may be granted by providing a transcript of the conversation, for example, if agreed upon between the data subject and the data controller.

Consequently, it is appropriate to uphold, for formal reasons, the present rights claim as it has been addressed late.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against KUMON INSTITUTO DE EDUCACION DE ESPAÑA, S.A. However, the issuance of a new certification by said entity is not warranted, as the response was issued late, and no additional actions are required from the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to KUMON INSTITUTO DE EDUCACION DE ESPAÑA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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